

WINTER FINAL EXAM NUMBER: _____

OSGOODE HALL LAW SCHOOL
YORK UNIVERSITY
DECEMBER EXAMINATION
December 12, 2024
Public and Constitutional Law
Examiner: Prof. Kate Glover Berger
Time: 1:30 pm to 4:30 pm

OPEN BOOK EXAMINATION

1. This exam consists of 17 pages, including 2 pages of instructions and 4 pages of policies on academic honesty. Please ensure that you have the complete file and that you review all pages.
2. This is an open book exam. You are permitted to access any materials that are not excluded by the Instructor's Policy on AI or by any other York University or Osgoode Hall policy. Thus, you are permitted to access material such as your textbook, your personal notes, judicial opinions available online, lecture outlines, and any other supplementary materials listed in the syllabus.
3. During the exam, you are **not** permitted to communicate with anyone about the exam or matters related to this course. **By submitting your exam answers, you affirm that you have not discussed any part of the exam, or collaborated on answers, with anyone, at any time, including colleagues, other legal professionals, and GenAI, in accordance with the relevant policies on Academic Honesty and Integrity, the Instructor's Policy on AI, and other York University and Osgoode Hall policies.** (This does not prevent you from communicating with Student Services if necessary).
4. You will access the exam through the Osgoode Online DropBox (accessed through MyOsgoode (sign into MyOsgoode, click on "Exams and Assignments", and access the DropBox for our course)). At the conclusion of the exam, please return to the Osgoode Online DropBox to upload your answers.
5. Please submit your answers in **PDF format.**

6. When you upload your answers, DO NOT USE YOUR NAME; use your **DECEMBER EXAM NUMBER ONLY**. To ensure anonymity, please do not identify yourself in any way in your answers.
7. This exam consists of three parts: **Part 1 (Hypothetical Fact Pattern)** is worth FIFTEEN (15) marks; **Part 2 (Agree or Disagree)** is worth FIVE (5) marks; **Part 3 (Multiple Choice/True-False)** is worth TEN (10) marks. You are required to answer ALL Parts. Note, however, that there is a choice of questions in Parts 2 and 3. No extra marks are awarded for answering more than the required number of questions.
 - a. In **Part 1 (Hypothetical Fact Pattern)**, there is ONE (1) question. All students must answer this question.
 - b. In **Part 2 (Agree or Disagree)**, please answer ONE (1) of the TWO (2) questions provided. No extra marks are awarded for answering both questions in Part 2. If you answer both questions, only your first answer will be graded.
 - c. In **Part 3 (Multiple Choice/True-False)**, please answer FIVE (5) of the SIX (6) questions provided. Each answer is worth TWO (2) marks. For each question, please indicate the option that you think best answers the question asked. There is no need to explain your answer and no marks will be awarded for doing so. In addition, no marks are awarded for answering all questions in Part 3. If you answer more than five questions, only your first five will be graded. If you answer a question in Part 3 that you believe to be genuinely ambiguous, please explain the ambiguity and your interpretation when providing your answer.
8. There is no word limit for your answers but keep in mind that your answers are stronger if they deal only with relevant material and issues.
9. Each part of the exam includes a suggested time to spend on that part. These times broadly reflect the points value for each part. I strongly recommend that you stick to these suggested times. It is always in your interest to address at least part of every question rather than leaving one Part of the exam or one question completely blank.
10. I'm wishing you the very best on the exam. I am looking forward to reading your answers and seeing all that you have learned. I hope you all have a wonderful winter break and I am excited to resume our study of Public and Constitutional Law in January.

(a) Policies on Academic Honesty and Integrity:

Osgoode students are required to maintain high standards of academic integrity and are subject to the York Senate Academic Conduct Policy and Procedures (adopted in summer 2024 and replacing the previous York Senate Policy on Academic Honesty) and the relevant [Osgoode Academic Rules](#). Further information is available on the [York Academic Integrity](#) site.

The Senate Policy and Osgoode Academic Rules are also available via the JD Students part of the MyOsgoode website, proceeding through the “Student Handbooks” button, then “JD Academic Handbook”, and the finally the “Academic Rules” link.

Special attention is drawn to the following three matters related to reliance on external persons, works, and/or technologies:

1) Unauthorized use of collaborative study materials

The provisions of the York Senate Policy on Academic Honesty on unauthorized collaboration have been supplemented by Osgoode’s “[Guidelines on use of Collaborative Study Materials in Examinations](#)”, found [HERE](#). **Students are strongly advised to read the Guidelines closely; knowledge of them will be assumed.** Note a key bottom-line is that **use of collaborative study materials in the ways and contexts set out in the Guidelines is prohibited** unless explicitly permitted by the instructor and, then, only to the extent of that authorization.

2) Assistance from content-generating artificial intelligence (GenAI) and/or AI prohibited by the instructor

The 2024 York Senate Academic Conduct Policy and Procedures contains new rules on use of content-generating artificial intelligence (GenAI) and AI more generally. Some key provisions are reproduced below to ensure no student is unaware of them:

Section 5.2.a.i. & ii.:

Cheating – the attempt to gain an unfair advantage in an academic evaluation. Forms of cheating include but are not limited to:

- i. Using an undocumented or unreferenced content generator, including the use of text-, image-, code-, or video-generating artificial intelligence (AI);
- ii. Obtaining assistance by means of documentary, artificial intelligence technology, electronic or other aids that are restricted by the instructor (see Section 6.2.c);

...

Section 5.2.a.x.:

Cheating – the attempt to gain an unfair advantage in an academic evaluation. Forms of cheating include but are not limited to:

...

- x. Submitting work prepared in collaboration with a third party when collaborative work on an assessment has not been authorized by the instructor/supervisor, and goes beyond correction of grammar, idiom, punctuation, spelling and sentence mechanics;

Although the interaction of the above passage with the earlier AI examples is not explicit in the policy, for the sake of caution “third party” here should be read to include use of tools like Word’s spelling and grammar feature, Grammarly, and so on. Such tools are fine to use but they cannot “go beyond correction” any more than a human third party’s assistance could. Because this provision is structured as prohibited-unless-authorized, students may not use such tools to essentially re-write drafts (if and when some tools develop such capacities) unless the instructor has enunciated a general course policy allowing such use.

Section 4:

Undocumented/Unreferenced: refers to undocumented and/or unreferenced quotes, passages, sources, and other missing or improper citation of work submitted for evaluation.

Section 6.2. & 3:

It is the responsibility of students to:

...

- c. follow their instructors’ expectations for using text-, image-, code-, or video-generating artificial intelligence (AI); referencing sources; group work and collaboration, and be proactive in pursuit of clarification and resources to support these expectations;

...

It is the responsibility of course directors and graduate supervisors to:

- b. communicate with and support students in following instructors’ expectations for using text-, image-, code-, or video-generating AI; referencing sources; conducting group work and collaboration;

3) Plagiarism, including unattributed paraphrasing and including connections to improper use of AI

The 2024 York Senate Academic Conduct Policy and Procedures has updated the section on plagiarism, to now read (section 5.2.b.):

Plagiarism – the appropriation of the work of another whether published, unpublished or posted electronically, attributed or anonymous, without proper acknowledgement. This includes but is not limited to:

- i. Presenting all or part of another person's work or ideas as something one has produced where work includes, but is not restricted to, text, code, technical and creative production, paragraph and essay structure and organization, and other forms that constitute intellectual property;
- ii. Paraphrasing another's writing without proper citation;
- iii. Representing another's artistic, technical work or creation as one's own;
- iv. Reproducing without citation the student's own work originally presented elsewhere; and
- v. Failing to attribute sources, or failure to attribute sources properly.

Apart from section 5.2.b.i.'s relevance to use of AI (in terms of how AI can lead to "presenting ...another person's work or ideas as something one has produced"), **students are especially urged to understand that paraphrasing without proper citation is plagiarism.** There has always been a concern that some students do not sufficiently understand the need to cite to sources of paraphrases no less than directly quoted work. This problem may be growing. Of late, this is manifesting itself in students using extensive paraphrases, sometimes that go on for pages, but only citing to the source at or near the start or at or near the end – and sometimes sprinkling in a reference or two in between.

Apart from such extensive paraphrasing not being exemplary work, the moment a reader cannot know whether a given idea or thought is connected to a citation (because the citation is so distant from it) is the moment such paraphrasing also constitutes the academic offence of plagiarism for failure to properly attribute. Students are urged to take great care here, especially since there are reasons to worry that even instructor-authorized use of an AI tool can lead students to start producing substantial paraphrases of AI-generated text. Again, however poor such use of AI would be, it also comes with the risk of plagiarism if the student has not properly referenced the AI tool and any question(s) used to prompt the AI tool's answers, and/or has not documented by retaining the text of both the questions (and follow-up prompts) and the answers given by AI. Thus, section 5.2.a.i. cheating by use of unreferenced and/or undocumented AI content generation can intersect with section 5.2.b. plagiarism.

(b) Instructor's Policy on the Use of AI

Developing a policy on the use of content-generating AI (GenAI) is now a necessity for universities and course instructors. The relevance and benefits, along with the dangers and limits, of GenAI for education – and for the legal profession – are undeniable. You will each have your own relationship and familiarity with AI tools, including GenAI, in your lives and in your approach to your legal education. No doubt, that relationship and familiarity are changing in real time.

These realities inform the development of this policy. In this course, I hope you will all develop an approach to learning that best serves you. This will likely take some time and careful attention at the outset and will be adjusted over time. There will certainly be some trial and error involved. To the extent that AI plays a positive role in your approach to learning in this course and in law school more broadly, I encourage its use.

At the same time, I hope this course will help all of you to not only build your knowledge of the fundamentals of public and constitutional law, but also develop your skills of independent judgment, legal reasoning, and persuasive communication and advocacy. Further, I hope this course will help you develop your own ideas, positions, and comments on matters relating to public and constitutional law. These are foundational skills for legal professionals, both on their own and to have the expertise and judgment needed to distinguish between accurate/reliable/valuable content generated by AI and that which is inaccurate/unreliable/weak/hallucinated/improperly referenced. To the extent that your use of AI tools undermines any of the learning objectives or pedagogical aims of our course, it is detrimental to your learning and I encourage you to reflect on revising your approach.

Regardless of how you use AI in your learning in this course, **submitting text created through the use of GenAI for any assessment is prohibited**. As set out in section 5.2.a.x. of the York Senate Academic Conduct Policy and Procedures, you are permitted to use tools like spellcheck and grammar check to correct text that you have written yourself, as long as that does not “go[] beyond the correction of grammar, idiom, punctuation, spelling and sentence mechanics”. But again, no text that was created through the use of GenAI can be submitted for the purposes of an assessment.

Further, I draw your attention to the York Senate Academic Conduct Policy and Procedures sections on cheating and plagiarism. Some relevant provisions of the Policy and Procedures are discussed above. Here, I emphasize that it is a breach of the York Policy to pass off as your own any work (including text, ideas, positions, arguments, etc) that are not your own. This is true regardless of the source of the work. Thus, it is a breach of the Policy to pass off as your own any work generated through AI. To the extent that AI is the source of information on which you rely in an assessment (exam or assignment) in this course, you must appropriately document and reference that use of AI. This documentation must include the tool and prompts used, along with the date on which the information was generated. Keep in mind as well that originality and demonstration of independent thought and judgment are often criteria used in evaluating assessments and so the use of GenAI, even documented use, in some ways will not be of benefit to your learning or assessment.

If you have any concerns, questions, or comments about this policy, please do not hesitate to reach out to me. Further, as you develop your approach to learning in this course and in law school generally, I would certainly be interested to learn if and how GenAI fits into your approach. As policies such as these are in their infancy, learning more about how students use GenAI – and how it is not useful – is of great interest and use.

PART 1 – HYPOTHETICAL FACT PATTERN (15 marks, SUGGESTED TIME: 90 MINUTES)

In May 2024, Ontario enacted the following statute, which came into force on August 1, 2024:

Ontario School Safety Act

Preamble

WHEREAS the safety and security of schools is of utmost importance to the flourishing of youth in Ontario and the flourishing of Ontario society as a whole;

WHEREAS the 2023 Report of Canada's Youth Crime Task Force showed that violence, threats, bullying, and aggression that rise to the level of criminal conduct are prevalent in Ontario's elementary and secondary schools;

WHEREAS several instances of crime and physical harm to students at school led Ontario's public health officer to list violence in schools as a pressing issue of public health;

WHEREAS all students will benefit from support services offered by dedicated school police officers and counsellors;

WHEREAS ensuring safety, security, and support for all students requires that every school in Ontario adopt an approach to student behaviour that emphasizes accountability, consequences, discipline, rehabilitation, community repair, and mandatory reporting;

His Majesty, by and with the advice and consent of the Legislative Assembly of Ontario, enacts as follows:

Purpose

1. The purpose of this Act is to protect students in Ontario's schools from violence and criminal activity, and to establish processes for responding when students are engaged in unsafe or unlawful conduct.

Definitions

2. In this Act,

- (a) "Disciplinary Measures" means actions taken in response to breaches of school safety standards.
- (b) "School" means any public or private elementary or secondary institution in Ontario.
- (c) "School Police Officer" means a police officer stationed at a school.
- (d) "School Safety Tribunal" means an agency that carries out the role set in section 8.
- (e) "School Social Worker" means a licensed professional assigned to a school.

- (f) “Serious breach of safety standards” means a breach of a school’s safety standards that involves violence, a threat of violence, bullying, or harmful conduct of any kind.

Safety Standards

3. Every school must establish safety and behavioural standards, including rules for conduct, processes of conflict resolution, programs for bullying prevention, and a student code of conduct, that comply with the policies set by their local School Safety Tribunal.

School Support Services

4. Every school must have at least one fulltime School Police Officer and at least one fulltime School Social Worker on-site during school hours.

5. The School Police Officer and School Social Worker must be trained in conflict de-escalation and counselling.

School Police Officer Authority

6. Every School Police Officer is authorized to investigate allegations of unlawful conduct and suspicious behaviour on school grounds and, when warranted, lay charges.

Reporting Requirement

7. The principal of every school must report every serious breach of safety standards, and every suspected serious breach of safety standards, to the School Police Officer or to a local police station.

School Safety Tribunals

8. Every school board in Ontario must establish a School Safety Tribunal to develop and implement policies about school safety and security; to hold hearings regarding allegations of a serious breach of safety standards by a student; and to issue appropriate disciplinary measures when a student is found to have engaged in a serious breach of safety standards.

Disciplinary Actions

9. Every breach of safety standards warrants disciplinary measures. These measures may include, but are not limited to, warnings, detention, community service, suspension, expulsion, enrolment in counselling or intervention programs, and fines, when applicable.

On September 1, 2024, the following article was published in the Sphere & Post, one of Canada's national newspapers:

Federal Government Seeks Ruling on Constitutionality of Ontario School Safety Act

Ottawa, Ontario – September 1, 2024

The federal government has launched a reference case before the Supreme Court of Canada, asking the Court to determine whether the *Ontario School Safety Act* ("OSSA"), a provincial statute passed earlier this year, is constitutionally valid. The Ontario government defends the law, arguing it falls within provincial jurisdiction over education, while Ottawa contends that it encroaches upon federal authority over criminal law.

What is the Ontario School Safety Act?

The OSSA, passed in the spring of 2024, implements sweeping measures designed to enhance student safety across the province's schools.

Supporters of the law argue that these provisions are necessary to create safer and more orderly learning environments, ensuring that schools are equipped to address a range of

behavioural and safety issues that may arise.

However, the federal government has raised concerns that the legislation oversteps provincial boundaries by touching on areas that fall under federal jurisdiction, particularly criminal law.

The Federal Government's Challenge

In the reference case filed this week, the federal government argues that the OSSA's "pith and substance" – the core nature and purpose of the law – concerns criminal law, which is under federal jurisdiction. Specifically, Ottawa contends that OSSA's true subject matter is to establish strict behavioural standards for students, the breach of which lead to serious penalties and automatic police involvement. This, the federal government argues, is criminal law in disguise.

The federal government points to provisions in the Act that require police officers to be present at all schools, that authorize police action on school grounds, and establish disciplinary actions such as fines and expulsion, that when applied to minors, may be seen as a form of punishment akin to criminal sanctions.

Attorney General Aisha Amin, speaking on behalf of the federal government, said, "The Ontario School Safety Act crosses constitutional boundaries by attempting to regulate criminal conduct and impose penalties that align with criminal sanctions." She emphasized that the power to enforce criminal law rests exclusively with the federal government, and any encroachment into that sphere could lead to a patchwork of inconsistent laws across provinces.

The Province's Defence

The Ontario government, led by Premier Dan Dodge, maintains that the Act is fully within its jurisdiction over education. In a press release, Ontario's Minister of Education explained that the law is primarily concerned with creating safer school environments and ensuring that educational institutions are well-equipped to address the challenges of student behaviour, mental health, and conflict resolution.

"We believe the Ontario School Safety Act is a reasonable response to the needs of students and the broader school community," said Ontario's Attorney General, Noah Roklov. "The primary focus of this legislation is education, which falls squarely under our jurisdiction. Our government is committed to ensuring schools are safe and supportive environments where all students can succeed."

Roklov further pointed out that the presence of police officers and social workers in schools is intended to provide support and intervention, not necessarily to enforce criminal law, though enforcement is authorized

and, when warranted, is an important part of the scheme. She stressed that the law's emphasis is on proactive measures such as counselling, mediation, and de-escalation, rather than punitive measures or the criminal justice system.

"We are not criminalizing students," Roklov added. "We are providing schools with the tools they need to support students, manage conflicts, and ensure safety. The province has a long history of regulating education and student conduct. This legislation is firmly within that tradition, while adapting to today's realities."

The Constitutional Debate

The central question before the Supreme Court will be whether the Ontario School Safety Act represents a proper exercise of provincial powers over education or whether they intrude upon federal jurisdiction over criminal law.

Legal experts note that the Court will need to carefully consider the "pith and substance" of the law – its true purpose – in determining whether it

aligns with the powers granted to the provinces under the Constitution Act, 1867. Past rulings have established that provinces have broad authority over education, but the federal government maintains exclusive jurisdiction over criminal law.

Some legal scholars suggest the case could have broader implications. "This case could reshape the way provinces are able to legislate on matters that intersect with federal authority," said Professor Emily Hunt, a constitutional law expert at the University of Toronto.

What's Next?

The Supreme Court has not yet announced when it will hear the case.

For now, the Ontario School Safety Act remains in effect, with schools required to begin implementing its provisions, although its ultimate legal fate rests in the hands of the Supreme Court.

– With files from The Osgoode Hall Press

On September 3, 2024, the following letter appeared on the Sphere & Post's "Letters to the Editor" website:

***Re: Federal Government Seeks
Ruling on Constitutionality of
Ontario School Safety Act
(Published: September 1, 2024)***

I read your article on the *Ontario School Safety Act* with interest, but I take issue with the characterization of the law as "safety" and "support" measures for students and schools. The article fails to mention some critical facts that suggest the true motivations behind the Act are not as altruistic as they may seem.

First, the OSSA was introduced in December 2023 and fast-tracked to ensure it was in force well before the 2024 school year. This rapid implementation raises questions about the real force driving the legislation.

In fact, the timing of the Act's introduction is highly suspicious. Only two months prior, in October 2023, the province's Minister of Education received an application from the *Freedom Academy*, an independent school based in British Columbia, seeking to operate as an accredited school in Ontario.

It is true that the *Freedom Academy* has been the subject of controversy due to its unconventional approach to education, which includes minimal rules and an unorthodox, "hands-off" disciplinary model. However, no-one has been more critical than Ontario's Premier, Dan Dodge.

In public remarks, Premier Dodge was quoted as saying that the *Freedom*

Academy was a "free for all" with no rules, a school that allowed "delinquent behaviour to go unpunished", was "inherently unsafe," and is "run by liberal hippie lunatics". He emphasized that "schools without discipline are for losers" and "don't belong in Ontario".

This harsh criticism directly preceded the introduction of OSSA, and it's hard not to see a connection. The Ontario government was not driven by safety, support, or providing resources, but rather by a desire to block the *Freedom Academy's* accreditation and impose stricter regulatory controls on alternative education models that fall outside the province's traditional framework. The introduction of this Act was not a reaction to widespread public safety concerns, but rather a targeted legislative move aimed at closing the door on an institution that Premier Dodge and his government find unpalatable.

By framing the Act as a broad-based solution to school safety and providing non-carceral resources to students involved in violent or threatening behaviour, the Ontario government has diverted attention away from its specific target—the *Freedom Academy*. The law's provisions, including the mandatory presence of police officers in every school and the establishment of school safety tribunals, reflect an overreach that will disproportionately impact schools that do not conform to the conventional model of education, not just those that are genuinely unsafe. The province's students will suffer as a result.

- Anonymous, Haliburton, ON

On November 26, 2024, the federal Ministers of Justice and Public Safety issued the following news release:

For immediate release

Minister of Justice Introduces Bill C-80: Sweeping Reforms to the Youth Criminal Justice System

Ottawa, ON – November 26, 2024 – Today, the Honourable Aisha Amin, Minister of Justice and Attorney General of Canada, and the Honourable Joanne Bell, Minister of Public Safety, introduced **Bill C-80**, a comprehensive package of reforms aimed at transforming Canada's approach to youth criminal justice. These reforms are designed to prevent youth crime by addressing its root causes, by responding to the needs of young people, and by providing effective support for those at risk of or involved in criminal behaviour.

The cornerstone of **Bill C-80** is its commitment to a holistic, rehabilitative approach to youth justice, one that seeks to keep young people out of the traditional criminal justice system.

"Our government recognizes that youth crime is a symptom of deeper issues, such as poverty, mental health challenges, struggling school systems, and lack of opportunity. Bill C-80 seeks to break this cycle by addressing the root causes of youth crime, fostering responsibility, and providing the support and guidance young people need to turn their lives around," said Minister Amin. "By empowering schools, communities, and the justice system to work together, we can create a system that is not only more effective but also more compassionate."

Key Features of Bill C-80:

1. **Prevention and Early Intervention:** Bill C-80 emphasizes the importance of **preventing youth crime** by focusing on the **underlying causes**, such as poverty, lack of quality education, mental health issues, and family instability. Through targeted prevention programs, the legislation aims to intervene before young people are drawn into the criminal justice system.
2. **Holistic Support for Youth:** The bill introduces an **individualized approach** to addressing the needs of young offenders. This includes tailored support services that range from public schools that can cater to a variety of learning styles and personal circumstances to high quality mental health care, mentorship programs, addiction treatment, and life skills training.
3. **Role of Schools and Communities:** One of the most significant changes introduced by Bill C-80 is the recognition that **schools** are key partners in preventing and addressing youth crime. The bill adds **schools** to the list of **institutions and communities** that will be particularly influential in pursuit of these goals. It

mandates that schools play an active role in fostering safe, supportive environments that promote positive youth development and reduce the risk of conflict with authority figures.

4. **Conditional Education Funding:** To ensure that the reforms are effectively implemented, Bill C-80 makes federal education funding conditional on a province's commitment to furthering the goals of Bill C-80. Provinces will be required to demonstrate that they are taking **positive steps** to integrate preventive measures, mental health support, and restorative justice practices in schools and communities, and are committed to preventing youth involvement with the criminal justice system.
5. **Victim Interests and Meaningful Consequences**
Bill C-80 also ensures that the **interests of victims** are considered, while fostering a process that emphasizes rehabilitation, restitution, and healing. This includes measures to ensure that young people involved in unlawful activity understand the harm caused by their actions and are held accountable in a way that promotes **healing for victims** and **responsibility** for the young person involved.

Minister Bell continued: "Through this legislation, we are taking a major step forward in reforming our approach to youth justice. Our goal is clear: we want to prevent youth crime before it happens, and when it does occur, we want to ensure that young people are supported in meaningful ways rather than sucked into a criminal justice system that is not designed with children in mind.

Next Steps:

Bill C-80 will now be debated in Parliament, with further consultations and expert testimonies expected throughout the legislative process. The government is committed to ensuring that the law is implemented effectively in partnership with provinces, schools, and communities, and is fully supported by necessary resources and litigation, if needed.

For more information or to schedule an interview with the Minister, please contact:

Sasha Tone

Press Secretary, Office of the Minister of Justice

***** (Questions on the next page) *****

QUESTION FOR PART 1 (15 marks)

You are a law clerk for one of the judges of the Supreme Court of Canada. The Court will soon hear submissions in the reference case dealing with the constitutionality of the *Ontario School Safety Act*. Your judge asks you to prepare a memo dealing with two issues on which the participants in the reference disagree: (a) What is the pith and substance of the *Ontario School Safety Act*? and (b) If the *Ontario School Safety Act* and Bill C-80 are both constitutionally valid and there is no operational conflict between them, should the *Ontario School Safety Act* be declared inoperable on other grounds?

Draft the memo addressing these two issues. Be sure to explain your reasoning fully, with reference to relevant authorities.

PART 2 – AGREE OR DISAGREE (5 marks; SUGGESTED TIME: 30 MINUTES)

Please answer ONE (1) of the TWO (2) questions provided. For the question you choose, indicate whether you agree or disagree with the statement provided and explain your position fully, with reference to relevant authorities.

No extra marks are awarded for answering both questions in Part 2. If you answer both questions, only your first answer will be graded.

1. Recall the facts in Part 1 of this exam. Now assume the Supreme Court concludes that: (a) the *Ontario School Safety Act* as a whole is valid; and (b) section 6 of the *Ontario School Safety Act* is a non-serious intrusion into Parliament's power over criminal law under section 91(27) of the *Constitution Act, 1867*.

AGREE or DISAGREE: Section 6 of the *Ontario School Safety Act* should be declared invalid and of no force and effect pursuant to section 52(1) of the *Constitution Act, 1982*.

2. **AGREE or DISAGREE:** The doctrines of modern federalism (e.g. the double aspect doctrine, the ancillary powers doctrine, the doctrine of interjurisdictional immunity, and the doctrine of paramountcy) are at odds with the unwritten principle of democracy because the constraints on legislative freedom are too severe.

PART 3 – MULTIPLE CHOICE/TRUE-FALSE (10 marks; SUGGESTED TIME: 60 MINUTES)

Answer FIVE (5) of the SIX (6) questions set out below. Each answer is worth TWO (2) marks. For each question, please indicate the option that you think best answers the question asked. **There is no need to explain your answer and no marks will be awarded for doing so.**

In addition, no marks are awarded for answering all questions in Part 3. **If you answer more than five questions, only your first five will be graded.** If you answer a question in Part 3 that you believe to be genuinely ambiguous, please explain the ambiguity and your interpretation when providing your answer.

1. You are a senior editor for the Osgoode Hall Law Journal. You are editing an article called “The Failures of Canadian Federalism”. The author has made each of the following points in the article. Which of the points does not require revision in order to be accurate?
 - a. According to *Canadian Western Bank v Alberta*, 2007 SCC 22 and *Quebec (AG) v Canadian Owners and Pilots Association*, 2010 SCC 39, the doctrine of interjurisdictional immunity can no longer be used in Canadian constitutional law.
 - b. According to the case of *Quebec (AG) v Lacombe*, 2010 SCC 38, the ancillary powers doctrine can no longer be used in Canadian constitutional law.
 - c. According to the *References re Greenhouse Gas Pollution Pricing Act*, 2021 SCC 11, the double aspect doctrine may apply when a fact situation can be regulated from different federal and provincial perspectives and each level of government has a compelling interest in enacting legal rules in relation to that situation.
 - d. All of the above are accurate and none requires revision.
 - e. None of the above is accurate. All require revision.
2. **TRUE or FALSE:** A valid provincial statute can deal with a topic that has a double aspect, can have incidental effects on matters within Parliament’s authority, and can be declared inoperable in the event of an operational conflict with a federal statute. However, if a valid provincial statute impairs the core of any federal power under section 91 of the *Constitution Act, 1867*, the provincial statute will be of no force and effect under section 96 of the *Constitution Act, 1867*.

3. Which of the following is true about constitutional architecture in Canadian constitutional law?
- a. The Supreme Court of Canada in the *Reference re Secession of Quebec*, [1998] 2 SCR 217 and the majority of the Supreme Court in *Toronto (City) v Ontario (AG)*, 2021 SCC 34 agree that each individual element of Canada's constitution is linked to the other elements, thereby forming a constitutional structure.
 - b. Within the structure of Canada's constitution, judicial independence is protected in part by ensuring that the relationship between the judiciary and the other branches of government is depoliticized.
 - c. The Canadian constitution does not reflect a strict separation of powers between the branches of government.
 - d. The institutional independence of the judiciary aligns with the logic of federalism because Canadian federalism needs an impartial arbiter to settle constitutional disputes between the provincial and federal governments.
 - e. All of the above are true.
4. Over the winter break, you receive an email from a high school student in your home town. The email reads: "Your parents told my parents that you're home from law school for the break. I hope you're loving it! Can you please help me with a project for my Law & Government class? I'm supposed to identify and describe a case from Canadian constitutional law that shows how the Canadian constitution is a 'living tree capable of growth and expansion within its natural limits'. Can you suggest some cases that I could use?". Which of the following would be an accurate suggestion to share with this high school student?
- a. The Supreme Court of Canada's majority judgment in *Reference re Meaning of the Word 'Persons' in Section 24 of the British North America Act, 1867*, [1928] SCR 276, in which Chief Justice Anglin observed, "Passed in the year 1867, the various provisions of the *BNA Act*...bear today the same construction which the courts would, if then required to pass upon them, have given to them when they were first enacted. If the phrase 'qualified persons' in s. 24 includes women today, it has so included them since 1867".
 - b. *Re Residential Tenancies Act*, [1981] 1 SCR 714, in which the Supreme Court held that the constitutionally protected jurisdiction of today's superior courts "conforms to the power or jurisdiction exercised by Superior....Courts at the time of Confederation...".

- c. The *Reference re Employment Insurance Act, ss 22 and 23*, 2005 SCC 56, in which the Supreme Court explained that interpreting sections 91 and 92 of the *Constitution Act, 1867* involves looking to the past to identify “essential components” of a legislative power (para 10) and then adapting the words to “modern-day realities, in a manner consistent with the separation of powers of the executive, legislative, and judicial branches” (para 10).
 - d. All of the above reflect the idea that the Canadian constitution is a living tree.
 - e. Only (a) and (b) reflect the idea that the Canadian constitution is a living tree.
5. **TRUE or FALSE:** Sections 91 and 96 of the *Constitution Act, 1867*, as interpreted by the courts, limit the freedom of provincial legislatures to establish and design administrative decision-makers.
6. Which of the following is true about the relationship between the unwritten principles of Canada’s constitution and the text of Canada’s constitution?
- a. The division of legislative powers set out in sections 91 and 92 of the *Constitution Act, 1867* is the only way in which the principle of federalism is reflected in the constitutional text.
 - b. Section 52(1) of the *Constitution Act, 1982* reflects the principle of constitutionalism.
 - c. The principle of democracy was intentionally described in the text of the *Constitution Act, 1867* to ensure that the federal and provincial governments of Canada would always be structured as constitutional democracies.
 - d. Unwritten constitutional principles can be used to interpret the constitutional text but cannot be used to fill gaps when the constitutional text is silent.
 - e. None of the above is true.